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General Comment

The attached submission is from Black Forest Labs.

Attachments

Black Forest Labs_OSTP response

Response to the Request for Information on the Development of an Artificial Intelligence Action Plan

Black Forest Labs

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Introduction¹

Black Forest Labs welcomes the opportunity to respond to the Office of Science and Technology Policy request for information on the development of an artificial intelligence (“AI”) action plan (“Action Plan”). As a leading developer of visual AI models, Black Forest Labs is committed to the safe and responsible integration of AI technology, and we support efforts by the Trump Administration to nurture AI innovation in the private sector. Consistent with Executive Order 14179, we encourage the Administration to develop an Action Plan that prioritizes innovation and competition in visual AI technology—such as generative image and video models— to lay the foundational infrastructure for a thriving creative economy.

Black Forest Labs is a frontier developer of visual AI technology

At Black Forest Labs, our mission is to develop frontier AI infrastructure for creators and innovators. Our founding team consists of pioneers in image and video generation—the researchers behind latent diffusion, VQGAN, and adversarial diffusion distillation—supported by investors including a16z and General Catalyst. With a small team of 25, we are pushing the boundaries of visual AI. Our models and tools support an ecosystem of enterprises, creators, and researchers around the world, making it possible for developers to build exciting new AI applications that we can scarcely imagine today. With over 15 million downloads to date, our open FLUX models rank among the most popular globally, ahead of open models such as Meta’s Llama,² and top the most capable open image models.³

- **We are committed to creators.** We focus on developing visual AI technology to unleash human creativity. Our technology helps enterprises, developers, researchers, and creators build new tools to realize their best work.
- **We are committed to open innovation.** We share research and model weights openly to promote greater transparency, support experimentation in novel applications, and expand global access to creative technology.
- **We are committed to safety before, during, and after release.** We apply layers of safeguards to encourage the safe and lawful deployment of visual AI technology. From training our models to hosting our services, we prioritize safety every step of the way.

¹ This document is approved for public dissemination. The document contains no business-proprietary or confidential information. Document contents may be reused by the government in developing the AI Action Plan and associated documents without attribution.

² See comparative developer engagement on the Hugging Face repository at AI World (2024), <https://aiworld.eu/embed/model/model/treemap>, accessed February 20, 2025.

³ Imgsys (2025), <https://imgsys.org/rankings>, accessed March 12, 2025.

The Action Plan should accelerate the development of a thriving visual AI ecosystem

Visual AI plays a critical but overlooked role in the AI ecosystem. While U.S. policy to date has focused on language models, visual AI will unlock broad swaths of the economy. With visual AI technology, animators will explore new concepts; architects will reimagine spaces; game developers will build new experiences; and creators will discover new forms of expression. The economic implications of this technology are substantial—with the potential to generate significant value for U.S. creative industries.

For the U.S. to lead in this domain, the Action Plan must prioritize innovation in visual AI, not just language models. The Action Plan should identify leadership in visual AI as a national economic priority. In particular, the Administration should review future legislative and regulatory action to ensure that small and independent developers of visual AI models or services can compete effectively with large technology platforms. Competition will help to sustain rapid innovation in visual AI technology, and reduce costs for developers, deployers, and creators.

Crucially, the Action Plan should endorse open innovation in models. Open models—those with publicly-available weights or parameters—facilitate downstream experimentation by creators, developers, and enterprises. Open models enable third parties to study, fine-tune, and integrate the model with other systems to build novel applications. Without a robust open ecosystem for visual AI models, the U.S. risks falling behind in the development and adoption of creative AI tools. In the past three months, labs backed by Tencent, Alibaba, and ByteDance have released capable open image and video models that rival those trained in the U.S., totaling 1.8 million downloads by developers over that period.⁴

The Action Plan should address emerging risks through targeted reforms

Like other modalities, visual AI technology can pose risks. Where there are gaps in our existing regulatory system, the Administration can take action to mitigate these risks, either through existing agencies or by encouraging Congressional action. Crucially, any reforms should be targeted and proportionate to avoid stifling the beneficial applications of visual AI technology, or chilling legitimate research and innovation. For example, the Administration should avoid proposals that extend liability to AI researchers or developers for the misuse of technology by downstream actors, provided that reasonable safeguards were implemented. Examples of challenging proposals include the Federal Trade Commission’s supplemental rulemaking on impersonation under the Biden Administration,⁵ or variations of the No AI FRAUD Act in the

⁴ Download figures obtained from the Hugging Face platform (2025).

⁵ 89 FR 15072.

previous session of Congress.⁶ Expansive liability regimes could discourage visual AI research in the U.S., pushing development abroad without resolving these longstanding risks. Instead, reforms should focus in the first instance on those who knowingly create or distribute harmful content, with appropriate safe harbors for model developers and service providers that implement reasonable mitigations.

The Action Plan should support the safe deployment of visual AI technology

The safe deployment of visual AI technology requires coordinated action across the entire ecosystem—from model developers to application providers to end users. The Action Plan is an opportunity to outline a comprehensive framework for encouraging safety in visual AI, helping to realize the vast benefits of creative AI technology while managing emerging risks.

First, the Administration should ensure that public safety research supports all media modalities, including image and video, not just language. Current safety research disproportionately focuses on large language models, with fewer resources dedicated to understanding visual AI risks. If the Action Plan endorses federal research, it should study visual AI safety, including evaluation methodologies, mitigations across the supply chain, content labeling techniques, and deepfake detection tools to identify synthetic media.

Second, the Administration should drive US leadership in global standards for visual AI. Through the National Institute of Standards and Technology and the U.S. AI Safety Institute, the U.S. can accelerate the development of consensus-based standards for evaluation and mitigation in visual modalities. These standards should be practical and adaptable, acknowledging the variety in visual AI applications. Such efforts could build on early frameworks developed by organizations such as Thorn and the Partnership on AI.⁷

Third, the Administration should recognize that the visual AI ecosystem includes not just model developers but application developers, deployers, and users—each with different roles and responsibilities. Rather than imposing uniform obligations across this diverse ecosystem, the Administration should adopt a distributed approach to safety. Different actors may have different expectations or obligations based on their role in the supply chain, their control over users or content, and their resourcing.

Finally, the Administration should establish coordination mechanisms for ongoing collaboration between industry, law enforcement, the intelligence community, and policymakers to address new risks as they emerge. Visual AI technology is evolving rapidly, and

⁶ H.R.6943 (118th Congress, 2024).

⁷ See e.g. Thorn (2024), <https://www.thorn.org/blog/generative-ai-principles/> and Partnership on AI (2024), <https://partnershiponai.org/modeldeployment/#landing>, accessed March 12, 2025.

static regulation will quickly become outdated. A more flexible approach—built around public-private collaboration, consensus-based principles, and technical standards—will better advance the twin goals of innovation and safety.

Conclusion

Visual AI will support economic growth across major U.S. industries, from entertainment to professional services. By accelerating the development of a thriving visual AI ecosystem in the U.S., addressing risks through targeted reforms, and supporting the safe deployment of this transformative technology, the Administration can help to realize the benefits of visual AI technology while mitigating emerging risks. Black Forest Labs stands ready to support these efforts and would welcome the opportunity to contribute to the development of the Action Plan.